MUPAMOMBE HOUSING CO-OPERATIVE SOCIETY LIMITED
Versus
MUPAMOMBE PHASE 4 BENEFICIARIES ASSOCIATION
And
MUPAMOMBE HOUSING PROJECT
And
OFFICER COMMANDING ZRP KADOMA DISTRICT N.O.

IN THE HIGH COURT OF ZIMBABWE
**BACHI MZAWAZI J**
CHINHOYI, 19/22 February 2026

**Civil Opposed Court Application**

*M. Mahlangu,* for the applicant
*B. Guta,* for the 1st respondent
No appearance for the 2nd and 3rd respondents

**BACH MZAWAZI J:** On the 9th of August 2025, through an urgent chamber application, the 1st respondent obtained a final order written an order by consent in case HCC169/25 per MUZOFA J. However, the order reflects the name of the representative of the 1st respondent, then applicant, B. Guta as the only party in attendance. The other parties, are reflected as in default. The urgent application cited the 1st respondent as *Mupamombe* Housing Project (also known as *Mupamombe* Housing Cooperative limited). The final order granted however, only captured the 1st respondent's name minus the bracted applicant's name.

It is this final order that the applicant seeks to rescind in terms of rule 29(1) of the 2021 High Court rules. The basis being, the applicants are interested parties, who were not cited or made parties to the proceedings under case HCC169/25, and whose interests have been adversely affected by the order granted. Applicants also seek to be joined to the main application to enable them to defend their interests in the main matter if the application for rescission succeeds.

In support of their application, the applicants have attached several documentary evidence illustrating their interest, the adverse effects that visits them if the order is not rescinded and that the order was erroneously sought and erroneously granted in their absence as an interested party. From the numerous judgments of this court sitting in Harare, attached as

annexures to the applicant's founding affidavit, it is evident that the parties have a live core dispute over ownership of a piece of land in Kadoma.

The identity of the parties and their capacities are well articulated in the founding affidavit. They need no repetition save to state that the parties have in common what I may term *Mupamombe* Stands. It seems at one stage in time the three factions once belonged to and stemmed from one umbrella body, hence the featuring of the common name *Mupamombe.* The applicant submits that it is the mother and only legal body, with the 1st and 2nd respondents as splinter groups wrangling for ownership of stands once falling under a one entity.

Evident on record is a judgment by MUSITHU *J,* HC3527/23 which ruled that the 2nd respondent and the applicant are now separate legal entities who had branched from the same genesis. However, as correctly observed by DUBE BANDA J in HH527/26, this judgment was rescinded. That was very misleading for Ms *Mahlangu*, for the applicant to submit that the position in that rescinded judgment is the true position of the law.

Another judgment from CHITAPI J141/ is also to the effect that the stands fall under the applicant's leadership. DUBE BANDA J, HH527/26 J in a dispute involving more or less the same parties, granted a similar order as sought herein concluding that the applicant therein, the same herein who had been left out, by the respondents, inclusive of the 2nd respondent was an interested party.

The applicant additionally, submits that the respondents' modus operandi as evidence by a plethora of extant judgments before this court sitting in Harare is to connive to deliberately institute legal proceedings as opposed parties. They exclude the applicant knowing fully well its interests and then mislead the courts by entering into a consent order. They do so with the full knowledge that they belong to the same camp, and had not incorporated an interested party.

In opposition the 1st respondent, relied mainly on their right not to be arbitrarily evicted as enshrined and protected by s74 of the Constitution. They vehemently deny that the applicant is an interested party. They argue that the applicant was registered in 2019. That is, it came into being well after the stands in contention had been allocated to the second respondents Mupamombe Projects. They substantiate that it is the second respondents who holds official documents from the relevant ministry over the stands in issue. They insisted that the applicant and the 2nd respondent are one and the same thing.

This court is being called upon to determine whether or not the applicant has made a case for rescission of judgment and a joinder?

Applicant had applied in the alternative for rescission of default judgment in terms of rule 27 of the High Court rules but did not motivate the same in their oral submissions. I am of the view that, guided by other decided cases and the facts of this case there is no need to venture into rule 27 but to proceed and be restricted to rule 29 (1). Why?

Rule 29(1) reads

*29. Correction, variation and rescission of judgments and orders*

(1) The court or a judge may, in addition to any other powers it or he or she may have, on its own initiative or upon the application of any affected party, correct, rescind or vary—

*(a)* an order or judgment erroneously sought or erroneously granted in the absence of any party affected thereby; or

It is clear that rule 29(1)(a) is all embracing of the applicant's cause of action and relief sought. It empowers the court who otherwise would be functus officio after delivering judgment and pronouncing itself in a case to revisit its judgment in warranting circumstances as encompassed in the rule.

What the applicant is mandated to prove, the application is at the instance of a party is, like in this case.

a. That they are an interested party
b. They had been excluded
c. The order or judgment adversely affects them
d. That the order was thus erroneously sought and granted in their absence

These requirements were highlighted in several cases such as, Grantully *Private Limited & Anor* v *UDC Ltd* 2000(1) ZLR 361(S), *Mutebwa* v *Mutebwa* 2001(2) SA 193(Tk), *Khan* v *Muchenje And Anor* HH126/13 *Matambanadzo* v *Goven* 2004(1) ZLR 399(S), *Jonas Mushosho* v *Lloyd Mudimu & Anor* HH 443/13 *and Kili v Msindwana in re: Msindwana v Kili* [2001] 1 All SA 339 (Tk) at 345.

In *casu* without repeating myself, it is evident that the applicant is an interested party given the numerous extant judgments of this court which are part of the record. From the order by MUZOFA J, it is clear that there was a misrepresentation. On the face of the application the applicant's name is bracketed as an appendix of the 2nd respondent which is not the accurate position as is evident on the papers

Further, the residential stands that were subject to the impugned order in HCC169/25 are the source of unresolved conflict between the applicant and the respondents. So, anything pertaining to or in relation to those stands has a bearing on the applicants as is evident from what has been chronicled above. This is further buttressed by CHITAPI J'S judgment above which pronounced itself on the leadership of the stands.

As a result, had the court, MUZOFA J, been presented with the true facts, or known of the existence or interest of the applicant she would not have granted the order that did not only exclude applicant but affected its interests. The interest of the applicants permeates through all the cases aforementioned and need no restating.

Cumulatively, the applicant has succeeded in demonstrating that order by MUZOFA J in case number HC169/25 was erroneously obtained and granted in the absence of an interested party. The application succeeds. I am inclined to invoke the power bestowed upon me by virtue of rule 29(1) and rescind the order of this court per my sister MUZOFA J above.

On the same basis, the applicant can only participate in the rescinded order, if they are enjoined to the main law suit. In that vein, the application for joinder also succeeds to enable the applicant to defend their interests in HCC169/25.

What is clear is that both parties do not want to address the real live dispute as to the ownership of the stands. Several judgments indicating persistent litigation have been attached and referred to but non touches on the crucial central issues. In the absence of such final determination, the parties continue on a futile pursuit of counter litigation on peripheral issues. Each party has an obligation to instigate such litigation that addresses the core of the conflict so as to bring finality to litigation. The cat and mouse games which has become a pattern must come to end. One party cannot make it habit to commence litigation at the exclusion of the other knowing full well of their interests. On the other hand, that other party should not simple position itself to firefighting or damage control, it must take a proactive stance and address the

real issue once and for all. All the parties are therefore to blame for perpetuating endless expensive futile litigation. It is for these reasons that I find no justification for costs DeBonis.

Accordingly, it is ordered that,

1. The application for rescission of judgment be and is hereby granted.
2. The order of this Court in case number HCCC169 /25, of the 9th August 2025, per Muzofa J, be and is hereby rescinded.
3. The Applicant be and is hereby joined as the 3rd Respondent in the main matter under case number HCCC169/25.
4. The 1st Respondent (Applicant in HCCC169/25) shall amend its Urgent Chamber Application and Founding Affidavit in HCCC169 /25 within five (7) days from the date of this Order.
5. The 1st Respondent (Applicant in HCC The 1st Respondent (Applicant in HCCC169/25) shall cause the amended Urgent Chamber Application and the Founding Affidavit annexed to it to be served on the Applicant as the 3rd Respondent therein within the period specified in clause 4 above.
6. The Applicant shall file its Notice of Opposition within ten (10) days of service of the amended Urgent Chamber Application and Founding Affidavit.
7. Each party to pay its own costs.

*Maposa Mhlangu Attorneys, the applicant's legal practitioners*

*Believe Guta representative of the 1st respondent*